



M2KR MELT2000 REVISITED
REMIX CONTRACT FOR PRODUCERS & DJ's

HEADS OF AGREEMENT

This agreement is made and entered into between M2KR MELT 2000 Revisited (here-in after referred to as "Label") 60 Bank Terrace, Manor Gardens, 4091 Durban, South Africa

And

Thabang Mabasa, Tyrone Stalmeester, Sthembiso Kekana

DJ/Producer Name (aka): **3rio Symphony**

(here-in after referred to as "Remix Artist")

64 Geranium Ave Birch Acres, Kempton Park, 1618

ID/Passport No.

email: 3riosymphony@gmail.com

Cell Tyrone: +27 83 246 9801

Social media links

- facebook ---> <https://www.facebook.com/3rioSymphonyProject?mibextid=ZbWKwL>
- Instagram ---> https://instagram.com/3rio_symphony?igshid=MmJiY2l4NDBkZg==
- Youtube ---> https://www.youtube.com/watch?v=wS_8zuj89DY

Master Remix Recordings (here-in referred also as The Remix Track)

Remix Track title including remix name and the remixer's DJ/Producer aka name:

Washa Washa (.....) by 3rio Symphony

Original Artist: **MADALA KUNENE**

Original Title Song: WASHA WASHA (Konko Man Album)

M2KR will make the remix available on all main digital download and streaming platforms through their distributor Proton Radio. Income from the original album will be accounted by the Licensee M2KR's Distribution company PROTON, the royalties are listed below. **Royalty rates are based on net profits** after the stores/services (i.e. Beatport) and the Label's distributor (i.e. Proton SoundSystem) have earned their commission*.

REMIKXER Royalty Rate*: **30 %**

Should there be more than one remixer the above royalty percentage will be divided by the number of remixers listed.

Initials: **TM**  8603235777086
SK  8801286283083
TS  8306275293085

M2KR REMIX CONTRACT FOR PRODUCERS & DJ's**EXCLUSIVE TERMS**

We (The Label) hereby collectively grant you permission to remix the original recording on the understanding that any release of the song(s) is subject to approval by the Label's 4 directors. The Label will make a selected number of separate tracks from the Title Song(s) available to The Remix Artist for this purpose subject to paragraph ORIGINAL RECORDINGS below. The record label guarantees to have carried out the rights clearance and to have all rights for the editing of the recording and work by The Mixer for remix utilization.

ORIGINAL RECORDINGS (SEPARATE TRACKS)

The Label do not grant the Remix Artist any digital rights and without a mutually agreed and signed license agreement you may not at any time release the recording or use the separate tracks provided by the label in any other project in any format both analogue or digital on download site, social networks or ringtones etc.

You acknowledge and agree that you (Remix Artist) will not sample or authorize the sampling by any third party engaged by Remix Artist of any copyrighted or otherwise proprietary material such as separate sound tracks belonging to the label or any person(s) without having first secured from the Label a written agreement. The Label M2KR will have sole ownership of all rights to the recording.

GRANTING RIGHTS

The Remix Artist transfers the exclusive, worldwide and transferable rights for the comprehensive utilization of the Master Remix recordings to the label for the duration of the copyright protection period. The Label accepts the transfer of rights.

COMPENSATION

Label has agreed to pay to Remix Artist future royalties for digital download and streaming at the rate specified above to the Remix Artist for the Remix Track(s) listed above. Any 3rd Party Licensing or synchronization income will be split according to the royalty rate listed above. Deductions of any costs & advances may be made from this royalty as outlined in an Included Expenses section of this contract. For the avoidance of doubt, if there is no Included Expenses section attached to this contract, then there will be no expenses or deductions. Adjusted remix royalties may be provided for specific remixes for special projects will be confirmed via email with agreement from Artist.

There will be no Advance payment for said Remix Track(s) unless stated in the 'Included Expenses' clause of this Contract or in an amendment to this contract. You will have access to daily sales and stream reports from Beatport, Spotify, iTunes, etc. via the "Performance" area of [Proton SoundSystem](#). Royalty payments will be made Quarterly (every 3 months). Payments may be withheld if sum does not match or exceed the withholding amount of US \$100. Held payments will be automatically added to the next quarter payment.

Initials:



M2KR REMIX CONTRACT FOR PRODUCERS & DJ's

The withholding amount per quarter is subject to change without notice. The label will only contact the artist in the event their dues have reached \$100. The label is not responsible for contacting the artist should their royalties not reach the withholding amount. The artist can at any time request a statement or payment, regardless if their royalty has reached the withholding amount.

WARRANTY

Artist warrants that he/she is authorized to assign the rights herein, and that the use of each Master will not violate the rights of any third party. Artist shall indemnify costs, losses, damages and expenses (including reasonable attorney's fees) of Label arising out of any breach or failure of any warranties or covenants made by Artist herein.

Artist(s) hereby relinquishing all ownership rights and granting to the Label and its successors, assigns, and licenses, the exclusive right of ownership and sole exclusive right to use and exploit specified Track(s) -REMIX TRACK TITLE(S): to be inserted

RIGHTS

Artist's rights and remedies in the event of a breach of this agreement shall be limited to Artist's right to recover damages in an action at law.

DURATION

Both parties have agreed that this agreement will hold for a minimum of 15 years from date of signature. After which the Remix Artist can request a termination at any time. For the avoidance of doubt the Remix Artist can request termination of this agreement any time after 15 years have passed from the signing of this agreement. If after 15 years no termination is requested 3 months prior to the (date and month of agreement) this agreement will automatically renew for a further 5 years. It is understood that after the full period of 20 years the rights to the Master Remix Recordings will be passed on to the OWNER of the rights to the ORIGINAL TITLE SONG. The Label reserves the right to terminate this agreement at any time.

This agreement, upon your approval, shall constitute a legally binding contract under which you assign to us exclusive rights throughout the Universe for the master recordings.

LAW

This license shall be governed by and subject to the laws of South Africa applicable to agreements made and to be wholly performed therein.

This represents the entire agreement between Artist and Label with regard to Said **Master Remix Recording(s)**. This agreement must be fully signed, initialed and sent for approval via e-mail to roberttrunz@gmail.com or nbcreations07@gmail.com .

Amendments to this agreement can be made with written (including e- mail) approval by both parties.



Initials:

M2KR REMIX CONTRACT FOR PRODUCERS & DJ's
SIGNATURE PAGE

Signed by the **REMIX ARTIST:**

X  X  X 

Thabang Mabasa **Tyrone Stalmeester** **Sthembiso Kekana**

9 day of **June** 2023

Witness Name and Signature:

X

Signed on behalf of **M2KR THE LABEL:**

X 

Nicole Blumenfeld aka Nicky B M2KR Director 13 day of **June** 2023

PUBLISHING COMPOSITION SHARE

The OWNER OF THE ORIGINAL COMPOSITIONS herewith agrees that the Remix Artist shall be entitled to a share of publishing rights in respect of the new musical work which is derived from remixing the original musical work. It is agreed between you and the owner of the original composition that you shall be entitled to a 25% share of the Master Mix Recording. It is the remixers obligation to register the 25% share with their publishers and Rights Associations like SAMRO in South Africa.

Signed by the **OWNER OF THE ORIGINAL COMPOSITIONS**

X

Mzwakhe "Madala" Kuneneday of2023